

9:00 A.M.

Calendar Line # 1

Case Name Oswald Campesato vs JiaHua Huang et al

Case No. 21CV391687

Motion for Attorney's Fees and Cost

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

This case arises from a wrongful eviction action by tenant/Plaintiff Oswald Capesato ("Capesato") against landlord/Defendants JiaHua Huang and Jane Wang (collectively "Defendants"). Plaintiff Capesato filed a Complaint against the Defendants on November 24, 2021, which included nine causes of actions, including allegations of wrongful evidence, nuisance, negligence, and sexual harassment. (Compliant). Defendants filed a cross-complaint for damages and defamation against the plaintiff. (Cross-Compliant and Amended Cross-Complaint). On or around February 27, 2024, a default judgment was entered against the defendants and in favor of the plaintiff in the amount of \$458,875.03. On August 20, 2024, the Honorable Eric Geffon set aside the defaults.

In September 2025, parties executed a binding written settlement agreement disposing of all claims at a mandatory resettlement conference. On October 22, 2025, a stipulation for an entry of judgment was filed in the amount of \$50,000.00 that was filed on December 23, 2025, and authorized by the Honorable Deen and filed January 8, 2026.

B. RELEVANT PROCEDURAL BACKGROUND

On January 12, 2026, an abstract of judgment was recorded, which created a judgment lien against the real property, a residence located at 10197 Finch Avenue, Cupertino, California, 95014. ("Subject Property"). On February 17, 2026, the plaintiff filed a writ of execution of the money judgment by sale of real property, the residence located at 10197 Finch Avenue, Cupertino, California, 95014. On or around May 11, 2026, the Santa Clara County Sheriff's levied upon the Subject Property.

On June 18, 2026, parties appeared for the hearing on the claim of exemption, which the Court posted a tentative order finding that the Order for Claim of Exemption is limited to \$746,640.00 and the plaintiff is allowed to proceed with the levy.

C. PRESENT MOTION

Before the Court is Plaintiff's post judgment motion for attorney's fees and cost that was filed on June 12, 2026. The motion was accompanied by a proof of service indicating mail service to Defendants.

On August 27, 2026, Defendants filed an "Amended Response and Request to Vacate Motions, Levy, and Sale Proceedings," which the Court will consider Defendants' opposition to Plaintiff's motion.

The Court has carefully reviewed the Plaintiff's notice of motion and memorandum of points and authorities ("MPA") (totaling 6 pages); Declaration of Brian D. Liddicoat and attached Exhibits A-C in support of the moving papers (totaling 8 pages); 06/12/2026 Memorandum of Costs (totaling 6 pages); 08/31/2026 Memorandum of Costs (totaling 2 pages); Defendant's Response (totaling 7 pages); proofs of services; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure, section 685.070, subdivision (a): "The judgment creditor may claim under this section the following costs of enforcing a judgment: . . . (6) Attorney's fees, if allowed by Section 685.040." Code of Civil Procedure section 685.040 provides that a "judgment creditor is entitled to the reasonable and necessary

costs of enforcing a judgment.” Attorney’s fees incurred in enforcing a judgment are expressly excluded unless otherwise provided by law. (*Id.*) Attorney’s fees that are incurred in enforcing a judgment are collectible as costs “if the underlying judgment includes an award of attorney’s fees to the judgment creditor pursuant to subparagraph (A) of paragraph (10) of subdivision (a) of section 1033.5” which allows for attorney’s fees when authorized by contract. (*Id.*; Code Civ. Proc., § 1033.5, subd. (a)(10)(A)).

Further, Code of Civil Procedure, section 685.080 subdivision (b) requires that:

The notice of motion shall describe the costs claimed, shall state their amount, and shall be supported by an affidavit of a person who has knowledge of the facts stating that to the person's best knowledge and belief the costs are correct, are reasonable and necessary, and have not been satisfied. The notice of motion shall be served on the judgment debtor. Service shall be made personally or by mail.

Recoverable costs include, but are not limited to those listed in Code of Civil Procedure section 685.070. (Code Civ. Proc., § 685.080, subd. (a).) In addition, a motion for costs under Section 685.080 must be filed before the judgment is satisfied in full but not later than two years after the costs have been incurred. (*Id.*) Allowable costs under Code of Civil Procedure section 1033.5 must be reasonably necessary to the conduct of the litigation, rather than merely convenient or beneficial to its preparation, and must be reasonable in amount. An item not specifically allowable under section 1033.5(a) nor prohibited under subdivision (b) may nevertheless be recoverable in the discretion of the court if they meet the above requirements (i.e., reasonably necessary and reasonable in amount). (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774). If attorney’s fees are awarded, the Court must consider the fair market value based on the particular action. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132). “The reasonable hourly rate is that prevailing in the community for similar work.” (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095). “[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate . . . ” (*Ketchum v. Moses, supra*, 24 Cal.4th at 1134). The lodestar method is based on several factors, as relevant to each particular case: “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (*Id.* at 1132).

III. ANALYSIS

Here, Plaintiff seeks motion for attorney’s fees and cost in the total amount of \$13,575.91 against Defendants for enforcing a judgment. (Motion, p. 2).

As a preliminary matter, the court notes that the parties executed a stipulated judgment to resolved the case for \$50,000.00 that was filed on December 23, 2025, and authorized by the Honorable Shella Deen and filed January 8, 2026. Under Code of Civil Procedure section 685.080, the motion is timely as it was filed before the judgment is satisfied in full, but not later than two years aft her costs have been incurred. The noticed motion also sufficiently set for the amount and was supported by an affidavit of Plaintiff’s counsel who has the best knowledge and belief the costs are correct, reasonable and necessary, and not satisfied. The motion was served by mail. (Code of Civ. Proc., 685.080 (a)-(b)). Thus, the Court considers the merits of the motion.

Plaintiff seeks fees and costs post judgment under Civil Code section 1717 and asserts that Plaintiff/judgment creditor is entitled to reasonable and necessary costs for enforcing a judgment under Code of Civil Procedure section 685.040 et seq. (Motion, at p. 3). The total amount of \$13,575.91 that Plaintiff seeks is comprised of: \$7,500.00 in attorney’s fees for Plaintiff’s counsel Brian Liddicoat for 15 hours of work at the hourly rate of \$500.00. Plaintiff filed a memorandum of costs seeking \$6,075.91, which is comprised of: \$200.00 in filing and motions fees, \$470.62 in service of process, \$723.29 in electronic filing fees, and \$4,682.00 in sheriff and title fees. (06/12/26 Memorandum of Costs; Motion, p. 5). The Court notes that Plaintiff filed an untimely memorandum of

costs on August 31, 2026 seeking an additional \$682.00 in litigation title reports. (08/31/26 Memorandum of Costs). Thus, Defendants seek \$6,757.91 in costs and \$7,500.00 in attorney's fees.

In opposition, Defendants essentially seek to vacate and the motions and judgements and raise a panoply of objections including: the defendant living below rent, making false claims, "engaging [in] non-stop legal stalking from grift fraud to extortion," challenge the basis of the writ, challenge service, efforts by Defendants to make payments despite having no income, lack of understanding of the levy process, Defendant Wang's severe physical limitations, unauthorized withdrawals and alleged impersonation by Plaintiff, lack of notice of motions, dispute that attorney's fees are automatic, extreme limited housing and financial services, request for cancellation or substantial reconsideration of the amount claimed for the fallen tree and requesting damages, reduction of the property's condition and value, overassessment of the house, comparable value of the property, and concerns regarding sale of the property. (Opposition, p. 1-5).

The Court notes that Defendants fail to cite any persuasive or applicable legal authority to oppose the present motion for attorney's fees and cost. There is no responsive motion to address Defendants' memorandum of costs. Defendants instead submit hearsay statements without verified evidence. Moreover, the Defendants essentially seek to relitigate motions that were already decided through its response, which is improper and nonresponsive to the motion at hand. In regards to service, Plaintiff has submitted proof of service via U.S. mail delivery to Defendants and notice is deemed proper. Further, on July 7, 20206, both parties were present and this motion was set to be heard on September 8, 2026, 9:00 a.m. in Department 1. (July 7, 2026, Minute Order).

However, Plaintiff seeks to collect attorney's fees for enforcing a judgment, but the underlying judgment was by stipulation of the party and does not include a vehicle for attorney's fees. The stipulated judgment executed by the parties and filed on December 23, 2025, and authorized and filed on January 8, 2026 by the Honorable Shella Deen. The parties stipulated to \$50,000.00 in resolution of the claim. There is an express agreement that: ***"Per stipulation of the Parties, this \$50,000 judgment includes any agreed amount for Plaintiff's attorneys fees through judgment as well as sums due Plaintiff from any award of monetary sanctions in this case."*** (01/08/26 Stipulated Judgment)(emphasis added). The portion stating attorney fee and costs are left blank. (*Id.*). Thus, the Court does not find a contractual basis or agreement awarding attorney's fees in the underlying stipulated judgment executed by the parties. Accordingly, Plaintiff's request for attorney's fees in the amount of \$7,500.00 is DENIED.

As to costs, Plaintiff filed two memorandum of costs on June 1, 2026 for \$6,075.91 and August 31, 20206 for \$682.00, for a total of \$6,757.91 post judgment costs that were expended to enforce the judgment. Aside from a list of costs for services, the Plaintiff fails to provide any invoices or dates. The Court finds \$87.98 for "Process Server: Serve Notice of Levy on All Other" to be vague and fails to show it was a reasonably necessary cost. The Court finds the August 31, 2026 memorandum of costs deficient for lack of prove up and finds it was untimely filed. Further, the first memorandum of costs sets for litigation title reports for the same amount of \$682.00 and without any invoice, dates, and further accounting, Plaintiff has failed to establish that this is nonduplicative, reasonable, and necessary. The cost listed as "4,000.00 2x \$2,00 Sheriff Fees (2x Parcels)" is also vague and there is not showing that the duplicate amounts were reasonably necessary. There is no further explanation or proof of as to why two parcels were listed and dates. Accordingly, the Court reduces costs in the amount of \$2,769.98.

IV. CONCLUSION

Based on the foregoing, the Court DENIES the motion for attorney's fees in the amount of \$7,500.00.

The Court GRANTS the motion for costs it the amount of \$4,669.93.

The Court will prepare the formal Order.

Calendar Lines #3- 4
Case Name Robert Hayter, II vs Bella Nguyen et al.
Case No. 24CV431877
Motion to Compel Response to Form Interrogatories (Line # 3) and Motion to Compel Responses to Request for Production of Documents (Line #4); Sanctions
I. <u>BACKGROUND</u> A. BRIEF FACTUAL SUMMARY This case stems from a slip-and-fall incident, wherein Plaintiff Robert Hayter, II filed a Complaint for a single cause of action for negligence on February 26, 2024. B. RELEVANT PROCEDURAL SUMMARY Before the Court is defendant Bella Nguyen’s (“Nguyen”) motion to compel Plaintiff Robert Hayter, II’s (“Hayter”) responses to request for form interrogatories (“FROG”), set one (Line # 3) and request for production of documents (“RFPD”), set one (Line # 4), and sanctions. On December 3, 2024, Defendant asserts to have served initial discovery including FROGs (Exhibit A, Declaration of Panto (“Panto Decl.”) and RFPD (Exhibit A, Panto Decl. ¶ 3), set one on Plaintiff’s then attorney Dayna Ellsworth via electronic mail service on that same day. Defense counsel met-and-conferred with Plaintiff’s counsel on December 13, 18, and 19, 2024 regarding a thirty day extension on discovery and then Plaintiff’s counsel noted an intention to withdraw as the attorney of record. On June 9, 2025, the plaintiff’s counsel filed a motion to withdraw that was granted by the Honorable Judge Deen on June 20, 2025. (Exhibit B, Panto Decl. ¶ 3-4). On August 8, 2025, Defense counsel sent a meet-and-confer letter to Plaintiff Hayter stating that no responses to discovery were received and provided a two week extension. (Exhibit C, Panto Decl. 5). The defendant did not receive responses. Defendant filed the motion to compel responses to FROGs and RFPD, set one and motion for sanctions on November 21, 2025. The motion was accompanied by a proof of service indicating mail service to Plaintiff Hayter. Both motions were set for hearing on July 30, 2026. On February 13, 2026, Defendants Amended Notice of Motion to Compel. However, per ex parte papers filed by the plaintiff seeking a continuance, the Honorable Mark Flannagan continued both motions to September 8, 2026 at 9:00 a.m. On July 29, 2026, Defendants filed a notice of non-opposition to the motions to compel. The motion remains unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 8, 2026 based on the first motion setting and due on August 25, 2026 based on the continuance. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court has carefully reviewed the following: Defendant Nguyen’s notice of motion to compel FROGS, set one and memorandum of points and authorities in support of motion to compel FROGs; Declaration of Arcolina Panto and attached Exhibits A-C (totaling 28 pages); Defendant Nguyen’s notice of motion to compel RFPD, set one and memorandum of points and authorities in support of motion to compel RFPD; Declaration of Arcolina Panto and attached Exhibits A-C (totaling 22 pages); Amended notice for motion to compel FROGs (totaling 4 pages);